

TENTATIVE RULINGS

June 08, 2026

	Case Name	Tentative
101	2025-01501393 Itria Ventures LLC vs. Azalea Systems Corp.	Motion for Summary Judgment and/or Adjudication Plaintiff Itria Ventures LLC's ("Plaintiff") motion for summary judgment is granted. Plaintiff moves for summary judgment on its third, fourth, and fifth causes of action against defendant Azalea Systems Corp., dba Handbill Printers and Velox Print ("Defendant Azalea"), and on its sixth, seventh, and eighth causes of action against defendant Gaby Azar ("Defendant Azar"). (The first and second causes of action have been dismissed. (ROA 35.)) <u>Legal Standard</u> "A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) Simply put, "[i]f a party moving for summary judgment in any action . . . would prevail at trial without submission of any issue of material fact to a trier of fact for determination, then he should prevail on summary judgment." (<i>Id.</i> at 855.) Where a plaintiff seeks summary judgment, the plaintiff's burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. (Code Civ. Proc. § 437c, subd. (p)(1); <i>S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.</i> (2010) 186 Cal.App.4th 383, 388.) It is not plaintiff's initial burden to disprove affirmative defenses and cross-complaints asserted by defendant. (<i>Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.</i> (2009) 170 Cal.App.4th 554, 565, citing <i>Aguilar</i>, supra, 25 Cal.4th at 853 ["summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action"].) If the plaintiff meets this initial burden, the burden then shifts to the defendant "to show that a triable issue of one or more material facts exists as to that cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).) In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar</i>, supra, 25 Cal.4th at 843.) <u>Breach of Contract Against Defendant Azalea (3rd, 4th, and 5th COA)</u> "[T]he elements of a cause of action for breach of contract are [1] the existence of the contract, [2] plaintiff's performance or excuse for nonperformance, [3] defendant's breach, and [4] the resulting damages to the plaintiff." (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821, internal citation omitted.) Here, the undisputed material facts establish: [1] The existence of three written Receivable Sale Agreements, entered into by Plaintiff and Defendant Azalea, on or about December 6, 2024, March 7, 2025, and April 29, 2025, respectively (Smalbach Decl. at ¶¶ 4, 12, 20, Exhs. 1, 3, 5); [2] Plaintiff's performance under the agreements, including by wiring the money required under the agreement into Defendant Azalea's approved account (Smalbach Decl. at ¶¶ 7,

		15, 23); [3] Defendant Azalea’s breach of the Receivable Sale Agreements by failing to make the weekly remittance payments due thereunder, and by failing to pay the entire amount due despite Plaintiff’s demand (Smalbach Decl. at ¶¶ 9-10, 17-18, 25-26); [4] Plaintiff’s resulting damages, including: \$186,331.94 due under the December agreement; \$93,205.37 due under the March agreement; and, \$369,357.04 due under the April agreement (Smalbach Decl. at ¶¶ 11, 19, 27, Exhs. 2, 4, 6.) Based on the undisputed material facts, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on the third, fourth, and fifth causes of action for breach of contract against Defendant Azalea. The burden shifts to Defendants to show that a triable issue of material fact exists. By failing to oppose the motion, Defendants have not met this burden. <u>Breach of Guaranty Against Defendant Azar (6th, 7th, and 8th COA)</u> “A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty.” (<i>Gray1 CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486, internal citation omitted.) Here, the undisputed material facts establish: [1] The existence of three personal guaranty agreements executed by Defendant Azar, in favor of Plaintiff, in connection with each of the subject Receivable Sale Agreements (Smalbach Decl. at ¶¶ 5, 13, 21, Exhs. 1, 3, 5); [2] The default of Defendant Azalea under the Receivable Sale Agreements. (Smalbach Decl. at ¶¶ 9-10, 17-18, 25-26); [3] Defendant Azar’s failure to perform under the accompanying guaranty agreements despite Plaintiff’s demand (Smalbach Decl. at ¶ 29); [4] Plaintiff’s resulting damages, including: \$186,331.94 due under the December agreement; \$93,205.37 due under the March agreement; and, \$369,357.04 due under the April agreement (Smalbach Decl. at ¶¶ 11, 19, 27, Exhs. 2, 4, 6.) Based on the undisputed material facts, Plaintiff has met its initial burden of showing that it is entitled to judgment in its favor on the fifth, sixth, and seventh causes of action for breach of guaranty against Defendant Azar. The burden shifts to Defendant to show that a triable issue of material fact exists. By failing to oppose the motion, Defendant has not met this burden. Additionally, in the alternative, the Court exercises its discretion to grant the motion because Plaintiff has met its initial prima facie showing, and Defendants did not submit an opposing separate statement. (Code Civ. Proc. § 437c, subd. (b)(3).) For the foregoing reasons, the motion for summary judgment is granted. Plaintiff shall submit a proposed judgment to the Court within 10 days and serve it upon all parties. The Case Management Conference scheduled for 07/27/26 is vacated. Plaintiff shall give notice of the ruling.
103	2024-01401794	Motion for Determination of Good Faith Settlement